THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

In the matter of an appeal in terms of section 331 (3) of the Code of Criminal Procedure Act.15 of 1979 read with Article 139 of the Constitution of the Democratic Socialist Republic of Sri Lanka.

Complainant

Vs

Weerasinghege Joseph *alias* Weeray Mama

Accused

AND NOW

Weerasinghege Joseph *alias* Weeray Mama

Accused - Appellant

Vs

The State

Complainant -Respondent

Case No: **CA/HCC/0003/2023**

High Court of Tangalle Case No: **THC/24/2017**

Before : **P. Kumararatnam, J.**

Pradeep Hettiarachchi, J.

Counsel : Dhanya Gunawardana for the Accused-Appellant.
Hiranjan Pieris, A.S.G. for the State.

Argued on : 18.12.2025

Decided on : 30.01.2026

Pradeep Hettiarachchi, J

Judgment

1. The appellant was indicted before the High Court of Tangalle on three counts of committing grave sexual abuse on a girl under sixteen years of age, offences punishable under Section 365B(2)(b) of the Penal Code, as amended by Act No. 22 of 1995 and Act No. 29 of 1998.

2. The trial commenced before the learned High Court Judge of Tangalle, and at the conclusion of the trial, the appellant was found guilty of all three charges and accordingly convicted. The learned trial Judge sentenced the appellant to ten years' rigorous imprisonment on each count. Further, the learned trial Judge ordered the appellant to pay a sum of Rs. 500,000.00 as compensation to the victim, with a default sentence of one year's simple imprisonment.

3. Being aggrieved by the said conviction and sentence, the appellant has preferred the present appeal. As directed by Court, both parties have filed their respective written submissions.

4. In his written submissions, the appellant advanced several grounds of appeal; however, at the hearing, counsel confined the argument solely to the alleged failure to prove the age of the victim. The learned Additional Solicitor General likewise conceded that the age of the victim had not been proved. Regrettably, neither learned counsel for the appellant nor the learned Additional Solicitor General exercised due diligence in the present appeal, as the birth certificate of the victim had in fact been marked in evidence during the trial before the High Court.

5. As is evident from the proceedings dated 12.09.2017, the age of the victim was in dispute, and the learned High Court Judge directed the prosecution to tender a copy of the victim's birth certificate on the next date of trial. Accordingly, on 02.08.2018, the original birth certificate of the victim, together with a copy thereof, was tendered to court. The copy was filed of record, and the original was returned to the victim.

6. According to the birth certificate, the date of birth of the victim is 28.11.1994. The period of the alleged offences, as stated in the charges, was between 01.06.2008 and 07.12.2008. It is therefore evident that the victim was under sixteen years of age at the time of the alleged offences. Accordingly, the ground advanced by the appellant regarding the alleged failure to prove the age of the victim is devoid of merit.

7. Nevertheless, I shall proceed to consider the other grounds of appeal as well, notwithstanding the fact that the appellant did not pursue them during oral argument, although they were raised in the written submissions. The appellant contended that the evidence of the prosecutrix was not corroborated and, therefore, that it would be unsafe to act on such uncorroborated evidence in a case of this nature.

8. The appellant place much reliance on the case ***of Premasiri vs Attorney General [2006] (3) Sri.L.R. 107*** where it was held inter alia that corroboration is essential before there can be a conviction in a case pf rape, but the necessity of corroboration as a matter of prudence., except where the circumstances make it unsafe to dispense with it, must be present to the mind of the Judge.

9. It must be emphasized that there is no hard and fast rule requiring corroboration in cases of this nature. It is well recognized that offences of this kind are often committed in secrecy, with the perpetrator deliberately choosing an isolated and discreet location to ensure that no one is present to witness the act. Consequently, it is only in rare cases that independent witnesses are available to corroborate the evidence of the prosecutrix.

10. In offences of grave sexual abuse, corroboration may sometimes be available in the form of medical evidence, depending on the nature and gravity of the act. In certain instances, medical evidence may confirm the commission of the offence; however, in many cases, particularly where the act complained of involves intercrural sexual acts, no physical traces may be present.

11. What is of paramount importance is a careful examination and analysis of the testimony of the prosecutrix. If such testimony is found to be cogent, credible, and free from material discrepancies, the Court is entitled to act upon it even in the absence of corroborative evidence.

12. In ***State of Maharashtra v. Chandraprakash Kewalchand Jain, (1990) 1 SCC 550]*** the Indian Supreme Court held:

> *'that a woman, who is the victim of sexual assault, is not an accomplice to the crime but is a victim of another person's lust and, therefore, her evidence need not be tested with the same amount of suspicion as that of an accomplice.*

The Court observed at page 559 as follows:

> *'A prosecutrix of a sex offence cannot be put on a par with an accomplice. She is in fact a victim of the crime. The Evidence Act nowhere says that her evidence cannot be accepted unless it is corroborated in material particulars. She is undoubtedly a competent witness under Section 118 and her evidence must receive the same weight as is attached to an injured in cases of physical violence. The same degree of care and caution must attach in the evaluation of her evidence as in the case of an injured complainant or witness and no more. What is necessary is that the court must be alive to and conscious of the fact that it is dealing with the evidence of a person who is interested in the outcome of the charge levelled by her. If the court keeps this in mind and feels satisfied that it can act on the evidence of the prosecutrix, there is no rule of law or practice incorporated in the Evidence Act similar to Illustration (b) to Section 114 which requires it to look for corroboration.*

13. In the present case, the Judicial Medical Officer who examined the victim testified that, as the victim was presented before him nearly two months after the alleged offence, he was unable to observe any injuries. The JMO further provided an adequate explanation as to why such injuries may not have been present, having regard to the nature of the act complained of. Accordingly, in my view, the absence of injuries on the prosecutrix cannot be regarded as a factor that would justify absolving the accused.

14. Our courts have consistently held that a conviction may be based on the sole testimony of the prosecutrix. It is only where the court is not satisfied with the version of the prosecutrix that it becomes necessary to seek other evidence, whether direct or circumstantial, to obtain assurance of her testimony.

15. In the present case, a careful examination of the evidence of the prosecutrix reveals no material infirmities going to the root of the prosecution case. Accordingly, I see no necessity to seek further corroborative evidence to substantiate her testimony.

16. In the appellant's written submissions, it was further contended that the complaint was belated and that, on that basis, the evidence of the prosecutrix ought not to be accepted. Although the learned trial Judge did not expressly address the issue of the alleged belatedness of the complaint in the judgment, the prosecutrix, in her evidence, provided a satisfactory explanation for the delay. Her responses during cross-examination clearly evince the fear under which she was labouring, particularly in view of the violent conduct attributed to the appellant.

At page 66 and 67, she testified as follows:

ප්‍ර : සුවිමාලියට යෝජනා කරනවා, සුවිමාලි පාසලේ ගුරුවරයකටවත් එහෙම නැත්නම් පාසලේ යෙහෙලියකටවත් මේ වගේ සිද්ධියක් ගැන සිද්ධියෙන් මාස දෙකක් ගත වෙනකම් පාසලටත් ගිහිල්ලා කිසිම කෙනෙක්ට මේ සිද්ධිය ගැන කිව්වේ නැත්තේ ඇත්ත වශයෙන්ම මෙවැනි සිද්ධියක් සිදු නොවුන නිසා කියලා ?

උ : කිව්වේ නැත්තේ වීරෙ මාමාට තියෙන භයට.

ප්‍ර : සුවිමාලිට ඔය කියන කාලසීමාව තුල වෙනත් ඥාතියෙකුට මෙවැනි සිද්ධියක් සිදු වුනා නම් කියන්න අවස්ථාවක් තිබුනා කියලා සුවිමාලිට යෝජනා කරනවා ?

උ : වෙනත් ඥාතියෝ ලගක හිටියේ නැහැ.

ප්‍ර : සුවිමාලි කිසිම ඥාතියෙකුට එවැන්නක් කිව්වේ නැත්තේ සුවිමාලි අද සාක්ෂි දීලා ප්‍රකාශ කරනවා වගේ සිද්ධියක් සුවිමාලිට මේ විත්තිකරුගෙන් සිදු වුනේ නැහැ කියලා යෝජනා කරනවා?

උ : වීරෙ මාමාට තිබුනු භයට තමයි කිව්වේ නැත්තේ. නිතරම බීලා ඇවිල්ලා ආච්චිලත් එක්ක එහෙම රණ්ඩු වෙනවා. නිතරම බඩු පොලොවෙ ගහනවා. ඒ නිසා මම නිතරම භයෙන්තමයි ජීවත් වුනේ. ඒ භය නිසා තමයි කිව්වේ නැත්තේ.

ප්‍ර : වීරෙ මාමා බීලා ඇවිල්ලා බඩු පොඩි කරනවා නේද ?

උ : එහෙමයි.

ප්‍ර : ආච්චිලත් එක්ක රණ්ඩු වෙනවා නේද?

උ : එහෙමයි.

ප්‍ර : එතකොට වීරෙ මාමා එ විදියට හැසිරෙනවා කියලා සුවිමාලි පොලිසියට කිව්වා ද?

උ : පොලිසියට කිව්වා.

ප්‍ර : කොහෙමද පොලිසියට කිව්වේ?

උ : වීරෙ මාමා බොනවා කියලා තමයි කිව්වේ.

ප්‍ර : බීලා ඇවිල්ලා බඩු පොලොවේ ගහලා ආච්චිලත් එක්ක රණ්ඩු වෙනවා කියලා පොලිසියට කිව්වා ද ?

උ : මතක හැටියට කිව්වේ නැහැ.

Vide Page 66 and 67

17. Thus, even though the learned trial Judge failed to address the issue of the delay in making the complaint by the prosecutrix, in my view, such omission is not fatal to the sustainability of the conviction, as the prosecutrix, in her testimony, had adequately explained the delay.

18. Upon the above analysis of the law and facts, I find no merit in the arguments advanced by the defence. Accordingly, I see no reason to interfere with the judgment of the learned High Court Judge.

19. Nevertheless, I shall consider the appropriateness of the sentence imposed on the appellant by the learned trial Judge. The appellant was sentenced to ten years' rigorous imprisonment on each count, the sentences to run concurrently. In addition, the appellant was ordered to pay a sum of Rs. 500,000.00 as compensation to the prosecutrix, with a default sentence of one year's simple imprisonment.

20. However, having regard to the nature of the acts complained of, the absence of any injuries to the victim, the lack of evidence of the use of violence, and the socio-economic status of the appellant, I am of the view that the amount of compensation

requires revision. Accordingly, the compensation payable by the appellant is reduced to Rs. 100,000.00.

21. In the circumstances, the conviction of the appellant on all counts is affirmed. The sentence of ten years' rigorous imprisonment imposed on each count, to run concurrently, is also affirmed. However, the order directing the appellant to pay a sum of Rs. 500,000.00 as compensation to the prosecutrix is varied, and the compensation is reduced to Rs. 100,000.00. The default sentence of one year's simple imprisonment shall stand modified accordingly. Subject to the above variation, the appeal is dismissed.

Judge of the Court of Appeal

P. Kumararatnam,J

I agree,

Judge of the Court of Appeal